

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-01

**Visual Comfort & Co.
v.
COSCO Shipping Lines Co. Ltd.**

**COMPLAINANT’S RESPONSE TO
RESPONDENT’S MOTION FOR TWO WEEK EXTENSION**

Complainant Visual Comfort & Co. (“VCC” or “Complainant”) submits this statement in response to Respondent COSCO Shipping Lines Co. Ltd.’s (“COSCO” or “Respondent”) Motion for Two Week Extension (“Motion”). In short, Complainant reluctantly consents to the relief sought in the Motion.¹

Notably, however, Respondent was on notice of—and ordered to respond to—Complainant’s discovery requests over eight months ago. *See* Presiding Officer’s Order dated July 17, 2024. Respondent should have retained an electronic discovery provider at that time, as Complainant did to respond to Respondent’s discovery requests. Instead, it appears that Respondent has, until now, attempted to “DIY” forensic collection and production of e-discovery,

¹ Complainant’s position is not reflected in Respondent’s Motion because Respondent gave Complainant just five hours in which to discuss the request internally and revert.

ignoring that “self-collection by a layperson or information on an electronic device is highly problematic and raises a real risk that data could be destroyed or corrupted.” *In re Abilify, (Aripiprazole) Prod. Liab. Lit.*, 2017 WL 9249652 (N.D. Fla. 2017); *see also, e.g., DR Distributors, LLC v. 21 Century Smoking, Inc.*, 513 F. Supp. 3d 839, 936 (N.D. Ill. 2021) (“Clients may fail to find or provide all responsive information for the additional reason of self-interest. As one author has warned, “[d]ocument collection by custodians who have a stake in the outcome of the litigation or whose conduct might have been embarrassing or compromising will draw heightened scrutiny and skepticism.””); *Tera II, LLC v. Rice Drilling D, LLC*, 2022 WL 1114943, at *4–5 (S.D. Ohio Apr. 14, 2022) (noting that self-collections by document custodians tend to give rise to ““questions regarding the accuracy and completeness of collections...””) (quoting *The Sedona Principles, Third Edition: Best Practices, Recommendations & Principles for Addressing Electronic Document Production*, 19 Sedona Conf. J. 1, 167 (2018)); *Vander Pas v. Bd. of Regents of Univ. of Wisconsin Sys.*, 664 F. Supp. 3d 893, 906 (E.D. Wis. 2023) (“counsel should be wary of permitting clients to self-collect their ESI. ... Self-collection leads to several issues. First, clients fail to disclose all relevant information or fail to disable autodelete features. [] Second, clients may omit relevant documents from collections before providing them to counsel, particularly if they have a stake in the outcome of the case. [] Third, clients likely will not document how they conducted their searches. [] All of these pitfalls lead to a “trickling production of documents,” which ultimately demonstrates an utter failure by counsel “to conduct the thorough search for documents required by Rule 34.”) (internal citations omitted).

Complainant has been materially prejudiced by Respondent’s prolonged and repeated refusal to comply with discovery requests and orders or to follow best practices regarding document collection. However, Complainant also recognizes that a two-week extension may be

necessary and/or reasonable where there are large repositories of documents to be searched and produced. It therefore does not oppose the requested extension, but expects that any reasonable extension Complainant requests, *e.g.*, in the event additional time is needed to review these voluminous documents, will be received by Respondent with the same courtesy.

DATED: March 6, 2025

Respectfully submitted,

/s/ Jennifer M. Oliver
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CERTIFICATE OF SERVICE

I certify that on the 6th of March 2025, a true and correct copy of the foregoing was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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